

24SMCV03557 24SMCV03557

County: los-angeles

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This is a motion for a preliminary injunction. Defendant has scheduled a foreclosure sale for September 22, 2026. The theory is that plaintiff has failed to pay the association dues in full. Plaintiff contends that the dues are being inappropriately assessed—he contends that the assessments need to be based on square footage while the HOA is assessing each unit equally. Plaintiff also contends that the HOA has failed to participate in the IDR/ADR process, which it must do under the CC&Rs before going forward with the lien and non-judicial foreclosure process.

A few preliminary matters.

This dispute has been ongoing for a number of years. It has seen its way to trial resulting in a judgment in 2024. There was a small claims action resolved a few years back as well. The HOA has in the past attempted to foreclose on the property, although it has not been successful up to this point (the HOA claims that this is because more senior debt was foreclosing). The court understands that the stakes are high. Defendant objected to the moving papers. While the motion is overlength, it is only by a few lines. The court will not strike it. The objection to the entirety of plaintiff's declaration is OVERRULED. There are argumentative statements in it and it improperly attempts to restate the evidence, but it does not change the outcome. Objections 1-7 are OVERRULED. The objections are based on hearsay, but the testimony is not hearsay; it is plaintiff giving his version of events. Where he bases his statement on documents and the documents are attached, the court views the documents as the best evidence of the contents. The

emails and texts in paragraph 21 are being offered to show their effect. The spreadsheet objection is OVERRULED. It is true that it is plaintiff's

spreadsheet, but that does not make it invalid.

As to the website exhibit, that goes to the date of the sale. While that may or may not be the actual date, defendant can state when the actual sale will be and the court will take defendant's word that it will not take place before then. The requests for judicial notice are GRANTED to the extent of court filings and proceedings as to the jural effect of the documents or that statements were made.

As to former testimony under oath by a party, the court will accept it.

Turning to the merits, the court must weigh two interrelated factors in resolving a motion for a preliminary injunction: (1) likelihood of success on the merits; and (2) balance of hardships. The court also looks to preserve the status quo ante. (King v. Meese (1987)

43 Cal.3d 1217.) Plaintiff seeks an injunction to stop the foreclosure sale.

As to the second prong, the balance of hardships tilts decidedly in his favor. If the property is sold, he loses his home. If the property sale is

delayed, the HOA loses nothing. It is

not like there is a showing that the equity in the home is insufficient to cover the delinquent assessments. And

loss of a home cannot be compensated in damages. The probable validity is a harder question. Plaintiff argues that

defendant did not complete the IDR or ADR process before foreclosing. Under the Davis-Stirling Act, such is required. (Civ. Code sec. 5705, subd.

(b).) The Notice was recorded on

November 14, 2023. Plaintiff asserts

that he requested IDR and ADR in September 2023, but he claims defendant never responded. Defendant disputes this. He claims that plaintiff is not presenting the full suite of exhibits. The HOA

states that it agreed to an IDR to take place on October 18, 2023, and informed

plaintiff of that by letter dated September 28, 2023. According to the defense, plaintiff failed to

appear at the IDR and the HOA wrote a letter on October 19, 2023, confirming

that fact. Plaintiff purportedly

responded on October 2, 2023. The

response states that he is in receipt of the September 28, 2023, letter but the

date won't work. He suggests other

dates. The HOA, however, disputes that

this letter was sent on that date, but rather suggests it was sent on or about

October 23. If the letter was actually sent on October 23, it comes too late.

The HOA offered an IDR, plaintiff did not show up. That is a waiver by plaintiff. On the other hand, if the letter was actually sent on October 2, then it is different, for then it would be a timely request by plaintiff to schedule a different date for medical reasons. The Board's failure to do that would be a refusal to participate in IDR. The letter was presented by plaintiff in the moving papers with the implicit assertion that October 2 was the true date.

The court will inquire because it may matter. If the letter was actually not sent until October 23, then it suggests fabrication of the record by plaintiff. The HOA also states that plaintiff sent a letter on October 20, 2023, at the same time as the above letter. In this letter, plaintiff claims that defendant is trying to create a false record of compliance. That letter states that the HOA's counsel "falsely" wrote that plaintiff failed to show up at the IDR. That letter refers back to the October 2, 2023, letter.

The court agrees that under the Act, the HOA must offer an IDR or ADR if requested by the owner.

The court agrees that plaintiff did request these procedures. On October 1, plaintiff again requested an IDR but claimed that he would not meet with the HOA's counsel. Oddly, he makes no mention in the October 1, 2023, letter of the proposed meeting date.

The court does not believe that either party really engaged in good faith here. The court has some questions about the timing of plaintiff's complaint.

And the court does not believe that plaintiff can refuse to meet with the Board's counsel. (The court notes that the proposed IDR included the Board itself; counsel might well be present, but the decision-makers were going to be there.) That is bad faith. And there is some doubt as to whether plaintiff complained of the date before the meeting. For the HOA's part, the court is concerned again. Even if plaintiff simply failed to appear, he later explained why. The Board should have rescheduled the meeting to discuss this.

The court is also not convinced that plaintiff can insist on both IDR and ADR. That said, the Board agreed to participate in a mediation (the costs to be split). Plaintiff apparently did not respond to that offer. ADR is defined in the Act as including mediation; it need not be an arbitration. (Civ. Code sec. 5925 subd. (a).) The court will inquire whether the CC&Rs state differently. If this is the case, the court will inquire as to why plaintiff did not agree to the ADR.

Defendant's problem is that while the merits are somewhat muddled, the balance of hardships is strongly in favor of plaintiff, as is maintaining the status quo ante. The court is therefore inclined to GRANT the preliminary injunction in that regard, but only to a limited extent. That is without prejudice to a summary judgment motion with a fuller record regarding the October 2, 2023, letter—including production of metadata as to whether it in fact was sent (to the extent it was sent electronically). The court also notes that the amount unpaid is under \$8000. Given that there is so little harm to the defense, the bond will be \$500. Further, the court will see if there is any metadata that can be produced to show that the October 2 letter was actually sent on October 2. If there is not, and if defendant's metadata suggests that the letter was not sent on that date, then defendant can move to lift the injunction, and the motion will very likely be granted.

As to the merits of the dispute—the way that dues are assessed—plaintiff seeks a mandatory injunction to required the HOA to change its formula. The court will not do that. Mandatory injunctions—where a party is compelled to do something as opposed to be told not to do something—are disfavored at the preliminary injunction stage. The court will not undertake that here. (*City of Corona v. MAG Outdoor Advertising, Inc.* (2016) 244 Cal.App.4th 291.) The request for a preliminary injunction as to the formula is DENIED. Finally, the court will entertain a motion (not today) by the HOA to bifurcate the case and to try the injunctive portion first and quickly. Because it is an injunction, that would be a bench trial.